

Sri Bapi Acharjee vs The State Of Tripura on 14 May, 2026

TRHC010014432025

2026:THC:627

HIGH COURT OF TRIPURA
AGARTALA
Crl.P.No.42 of 2025

1.Sri Bapi Acharjee,
S/o- Sri Satya Ranjan Acharjee,
C/O Sri Krishna Mohan Das
Of village- Meghlipara, P.O.- Meghlipara,
P.S.-Ranir Bazar, District- West Tripura.

2.Sri Satya Ranjan Acharjee
S/O Late Anukul Ch. Acharjee
Of village- Meghlipara, P.O.- Meghlipara,
P.S.- Ranir Bazar, District- West Tripura.

3. Smt. Anita Acharjee
W/O Sri Satya Ranjan Acharjee
Of village- Meghlipara, P.O.- Meghlipara,
P.S.- Ranir Bazar, District- West Tripura.

4. Sri Nanda Lal Acharjee
S/O Sri Satya Ranjan Acharjee
Of Village-Meghlipara, P.O.- Meghlipara,
P.S.- Ranir Bazar, District- West Tripura.

.....Petitioner(s)

VERSUS

1.The State of Tripura,
Department of Home, Government of Tripura,
Notice to be served upon the Public Prosecutor,
High Court of Tripura, Agartala, West Tripura.

.....Respondents.

2.Smt. Supriya Acharjee D/O Sri Dhananjoy Acharjee Of Village: North Srirampur, Near Chottakhala Bazar, P.O.- Siddhi Nagar, P.S.- P. R. Bari, District- South Tripura, Pin- 799157.

....Complainant-Respondent(s).

For Petitioner(s) : Mr. Nepal Majumder, Adv.

For Respondent(s) : Mr. Raju Datta, P.P.,
Mr. Ratan Datta, Adv.

Date of Hearing : 08.05.2026

Date of delivery of
Judgment and Order : 14.05.2026
Whether fit for

Reporting : YES

HON'BLE MR. JUSTICE BISWAJIT PALIT

Judgment & Order

This petition under Section 482 of Cr.P.C.

corresponding to Section 528 of B.N.S.S. is filed for quashing of the FIR dated 28.08.2020 in connection with Ranir Bazar P.S. Case No.2020 RNB 047 which culminated into charge- sheet and registered as PRC (W.P.) No.249/2021 and also the subsequent order dated 24.03.2022 passed in the said case by Learned J.M., 1st Class and thereafter the order dated 21.02.2025 passed by Learned Sessions Judge, Court No.5, West Tripura, Agartala in Revision Petition No.35 of 2022 rejecting the prayer for discharging of the accused persons, i.e. the petitioners herein, upholding the order dated 24.03.2022 passed by Learned J.M. 1st Class, Court No.6.

02. Heard Learned Counsel, Mr. Nepal Majumder appearing on behalf of the petitioner-accused persons and also heard Learned P.P., Mr. Raju Datta appearing on behalf of the State. The defacto-complainant although appeared and sought time to file objection, but nothing was submitted. However, Learned Counsel for the defacto-complainant, Mr. Ratan Datta appeared at the time of hearing.

03. Taking part in the hearing, Learned Counsel, Mr. N. Majumder submitted that the marriage occurred in between the respondent-victim and the principle-accused, i.e. the petitioner No.1 herein took place on 27.07.2009 according to Hindu Marriage Rites and Customs, but unfortunately, soon after the marriage, the respondent was reluctant to stay with the petitioner No.1 for which matrimonial discord took place amongst them and she used to leave her matrimonial home frequently which compelled the petitioner No.1 to file divorce petition at Agartala and thereafter, as per order of this Court the matter was remanded back to the Court at Belonia but ultimately, the petitioner-husband could not proceed further with the matter for which the same was disposed of without any merit. Immediately, thereafter, the respondent filed the present FIR on 28.08.2020, i.e. after a long period of their marriage involving the family members of the petitioner- husband without any cause of action and on the basis of some ominous statements, the I.O. laid charge-sheet against all the petitioners and before the Learned Trial Court the petitioners filed petition for discharging them but the same was rejected and thereafter, a revision petition was preferred challenging that order which also has been dismissed. So, by this petition the petitioners also have challenged that order also.

It was further submitted that on bare perusal of the statements of witnesses recorded by I.O. during investigation, no material would be found against any of the petitioner- accused persons showing their involvement with the alleged offence and only the family members of the respondent gave some manufactured story but no independent witnesses supported the case of the victim and on the basis of those statements, there is no scope to frame charge against the petitioner-accused persons but the Learned Courts below without considering the same passed an order for framing of charge.

Learned Counsel in this regard, relied upon a judgment of the Hon'ble Supreme Court of India in P.V. Krishnabhat & Anr. v. The State of Karnataka & Ors. reported in 2025 SCC OnLine SC 484, wherein in para Nos.16, 17 and 18, Hon'ble the Apex Court observed as under:

"16. Criminal law should not be used as a tool for harassment or vendetta. The allegations in a criminal complaint must be scrutinized with care to ensure that they disclose a prima facie case before subjecting individuals to the rigors of a criminal trial. The cases involving allegations under Section 498-A of the IPC and the DP Act often require a careful and cautious approach to prevent misuse of the law. While the provisions are intended to protect women from cruelty and dowry harassment, they should not be used to settle personal scores or pursue ulterior motives.

17. In the present case, the allegations against the appellants were devoid of merit, manifestly frivolous and fail to disclose a prima facie case. The continuation of criminal proceedings in such circumstances would amount to an abuse of the process of law and result in a miscarriage of justice.

18. Accordingly, the appeals are allowed and the criminal proceedings under Section 498-A of the IPC and Sections 3 and 4 of the DP Act against all the appellants are quashed."

Reference was further placed upon another judgment of the Hon'ble Supreme Court of India in Kahkashan Kausar @Sonam & Ors. v. State of Bihar & Ors. reported in (2022) 6 SCC 599, in para Nos.21 and 22, Hon'ble the Apex Court observed as under:

"21. Therefore, upon consideration of the relevant circumstances and in the absence of any specific role attributed to the appellant-accused, it would be unjust if the appellants are forced to go through the tribulations of a trial i.e. general and omnibus allegations cannot manifest in a situation where the relatives of the complainant's husband are forced to undergo trial. It has been highlighted by this Court in varied instances, that a criminal trial leading to an eventual acquittal also inflicts severe scars upon the accused, and such an exercise must, therefore, be discouraged.

22. In view of the above facts and discussions, the impugned order dated 13-11-2019 [Mohd. Ikram v. State of Bihar, 2019 SCC OnLine Pat 1985] passed by the High Court of Patna is set aside. The impugned FIR No. 248 of 2019 against the appellants under Sections 341, 323, 379, 354, 498-A read with Section 34IPC stands quashed."

Referring those judgments, Learned Counsel submitted that on the basis of materials on record prima facie there is no scope to frame charge against any of the petitioner- accused persons showing their involvement with the offence as alleged and furthermore, on the basis of statements of the witnesses recorded by I.O. during investigation nothing reveals against any of the accused persons showing their involvement with the alleged crime and as such Learned Counsel urged for quashing of the entire proceeding.

04. On the other hand, Learned P.P., Mr. Raju Datta appearing on behalf of the State-respondent submitted that this is a case under Section 498A of IPC corresponding to Section 85 of BNS and in a case of this nature, it is very difficult to get any direct evidence showing implication of the accused persons because in most of the occasions, it is observed that the offence takes place within the four perimeter of the wall and as such there remains very least scope on the part of the independent public witness to see the occurrence of offence, so, according to Learned P.P., there was no infirmity in the order passed by the Learned Trial Courts below.

Learned Counsel, Mr. R. Datta appearing on behalf of the respondent- complainant submitted that the respondent- complainant was subjected to cruelty by the petitioner-accused persons for which after completion of investigation, the I.O. has laid charge-sheet against the petitioner-accused persons since during investigation their involvement revealed and the Learned Courts below after considering the materials on record, rightly passed order for framing of charge. So, there is no scope to quash the proceeding at this stage.

05. In this case, prosecution was set into motion on the basis of an FIR laid by the respondent-victim, Supriya Acharjee alleging inter alia that on 27.07.2009 the marriage of the respondent-informant was held with Bapi Acharjee socially and in the marriage her father gave Rs.70,000/- in cash along with T.V., Wooden furniture, golden ornaments etc. After one month of their marriage, her husband told her to bring Rs.20,000/- from her father and caused torture upon her. Her father was a poor man having a tea stall, so, it was not possible on his part to pay the same amount. After that her husband, father-in-law, mother-in-law and brother-in-law started causing cruelty upon her. Thus, she stayed one year to her matrimonial home and considering the future of her daughter her father paid Rs.15,000/- in two phases to her husband and father-in-law. After one and half year of marriage, she conceived a baby which was aborted by her husband. Again in year 2013, she was conceived again when her father-in-law, mother-in-law, husband and brother-in-law administered medicine in the milk for which her pregnancy was terminated. Thereafter, the accused persons continued to start physical torture upon her. On 02.12.2019 her husband tortured her by showing one dao when she became furious and finding no alternative, she informed the matter to her mother and she was taken back to her father's home. After that she could know from local people that on 25.07.2020 her husband married one woman forcefully in her absence and detained her. Later on, the matter was resolved by the intervention of the local people. Now, she further came to know that her husband was staying with an unknown woman. Again she stated that last 10 years, she was subjected to torture for bringing of money and keeping the articles given during the marriage, she was forced to leave her matrimonial home. Accordingly, she laid the FIR on 28.08.2020. On the basis of the FIR Ranir Bazar P.S. case No.47 of 2020 under Section 498A of IPC was registered. The I.O. on completion of investigation laid charge-sheet against all the accused persons.

06. I have gone through the FIR laid by the informant and also the charge-sheet. During investigation, the I.O. recorded the statements of the informant-cum-victim, her mother, one Bakul Acharjee, Swapna Das, Amar Das, Janardhan Acharjee and also the father of the victim. The victim/informant during recording her statement by I.O. tried to support her version in the FIR. Similarly, the parents of the victim tried to support the version of the victim. From their statements,

it appears that they only stated in the marriage, cash amount and other articles were given and thereafter, she was subjected to cruelty by her husband for money and amount was given, although no specific date was mentioned which is the subject matter of trial. But from the statements from independent public witnesses, only it appears that the marriage between the informant and the petitioner No.1 took place and thereafter, some family dispute cropped up and for that village conciliation meeting took place. Save and except those evidence, no other evidence was found in the statement of witnesses recorded by I.O. More so, on bare perusal of the FIR and also the statements of witnesses specifically the statement of the victim and her parents accepting allegation against the petitioner-husband no specific assertions were there against the rest petitioner-accused persons for further proceeding against them. Thus, after hearing both the sides, it appears that excepting the petitioner-husband, the I.O. could not collect any material against the rest petitioner-accused persons showing their involvement with the alleged offence. So, the cognizance taken against them was bad in law and the orders passed by the Court of Learned J.M., 1st Class, affirmed by Learned Additional Sessions Judge by order dated 21.02.2025 in CrI.Rev.No.35 of 2022 was appears to be perverse which needs to be interfered with.

07. In the result, this petition is partly allowed. The proceeding against petitioner No.2, 3 & 4 pursuant to Ranir Bazar P.S. Case No.47 of 2020 corresponding to PRC(WP) 249 of 2021 accordingly stands quashed. They are accordingly, discharged from the liability of their bail bond. The Learned Trial Court shall proceed for trial only against the accused, Bapi Acharjee. From the record, it appears that the case is at the stage of recording of evidence. So, the petitioner-accused No.1, Bapi Acharjee shall appear before the Learned Trial Court on 22.05.2026 when on his appearance, Learned Trial Court shall fix the dates for recording of evidence of PWs. However, all endeavour shall be made by the Learned Trial Court to dispose of the case preferably within a period of not more than one year.

Send down the record to the Learned Trial Court along with a copy of this order/judgment.

With this observation, this present petition stands disposed of.

Pending application(s), if any, also stands disposed of.

JUDGE

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Date: 2026.05.15 18:08:00

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